

Attachment 2
U.S. Customs and Border Protection
Sole Source Justification (SSJ) - RFO Subpart 8.4 and GSAR 538.7104-3
For Orders or BPAs Exceeding the SAT

Date: 04/03/2026

PR Number: 20157244

This acquisition is conducted under the authority of the Multiple-Award Schedule Program, 41 U.S.C. 152(3), Competitive Procedures, and 40 U.S.C. 501, Services for Executive Agencies.¹

1. Agency and Contracting Activity.

The Department of Homeland Security (DHS), U.S. Customs and Border Protection (CBP), Office of Acquisition (OA), proposes to award a sole source task order against a GSA Multiple Award Schedule GS-07F-072GA, pursuant to the ordering procedures established by the General Services Administration and intends to proceed with this action in accordance with Government Services Acquisition Manual/Regulation (GSAR) 538.7104-3, Sole Source Justifications, and HSAM 3008.401-71, Sole source justifications.

2. Nature and/or description of the action being approved.

CBP intends to place an order on a sole source basis pursuant to GSAR 538.7104-3(b)(ii) for ground transportation and guard services with proposed contractor: ISS Action Inc., 204 E. McKenzie St. Unit E6, Punta Gorda. FL. 33950. The price breakout is below:

<u>Period</u>		<u>Unit Price</u>	<u>Total</u>
Base period	3 mo.		
Option period 1	2 mo.		
Option period 2	1 mo.		
		Total	

The sole source has a base period of three months plus two option periods totaling 6 months. The option periods are not guaranteed and will only be exercised at the discretion of the Government. The intention of the total period of performance is to allow the Government to solicit the new transportation contract.

3. Description of supplies or services required to meet the agency's need.

Currently, only one source is capable of providing the services required with certified, armed transportation officers and vehicles outfitted with detention packages, camera systems and communication systems. CBP has a highly technical requirement which entails a significant amount of preparation and ramp up to be able to fully operate. A sole source task order will be awarded against GSA schedule contract, GS-07F-072GA, to contractor ISS Action Inc. who is already certified, licensed, and operating the ground transportation and guard services as required by CBP.

¹ In this document, citations to RFO Part 8 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 25-20 for FAR Part 8, which was issued as part of the Revolutionary FAR Overhaul (RFO) implemented in response to Executive Order 14275, *Restoring Common Sense to Federal Procurement*, signed April 15, 2025.

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CBP requires Armed Ground Transportation and Facility Guard Services to support the mission along the United States Southwest Border within the Arizona and California Corridor (ACC).

The ACC encompasses four U.S. Border Patrol (USBP) sectors:

- o Tucson Border Patrol Sector
- o Yuma Border Patrol Sector
- o El Centro Border Patrol Sector
- o San Diego Border Patrol Sector

As a critical part of its mission, CBP must provide detainee ground transportation, (armed/unarmed) and medical and facility guard service for the movement of detainees intercepted and/or processed within the Southwest ACC Border.

4. Authority and supporting rationale.

- GSAR 538.7104-3(b)(1)(ii): Only one source is capable of providing the products, services, or solution required at the level of quality required because the products, services, or solutions are unique or highly specialized.

ISS Action, Inc. is the incumbent provider of the detainee ground transportation and guard services in the ACC and currently:

- Owns or controls a fully operational fleet of vehicles already outfitted with detention packages, camera systems, and communications that meet CBP's safety and security standards;
- Employs approximately 130 trained, armed, uniformed, Commercial Driver's License (CDL) qualified drivers and guards who are already vetted, cleared, and operating in the four Sectors;
- Has established 24/7 dispatch, scheduling, and management processes tailored to USBP's operational patterns, including ad hoc and surge missions; and
- Operates under existing sector specific procedures, security protocols, and emergency response plans in coordination with USBP and OFO.
- Is prepared to perform all services and requirements identified in Performance Work Statement (PWS) Section I Scope and PWS Section III Performance Requirements and Standards

No other vendor identified through comprehensive market research performed for this requirement has this immediate, turnkey capability in the specific Arizona/California Corridor. Any new vendor would need time to:

- Acquire or retrofit a sufficient number of secure transport vehicles to meet the low and high capacity mission needs across four Sectors;
- Recruit, vet, train, and certify a comparable cadre of approximately 130 cleared, armed, uniformed CDL drivers and guards;

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- Establish and test 24/7 operational management, communications, and dispatch processes integrated with CBP systems and local operational practices; and
- Obtain necessary clearances and approvals to begin service.

Without previously cleared staff, a new contractor would be waiting a minimum of 30-60 days for background clearance, but more likely, significantly longer to obtain provisional clearances to begin service under a new contract. This type of delay would be unacceptable in the rapidly changing environment in which the USBP is currently operating in Arizona and California where migrant increases along the border may go up at any time.

CBP currently relies on a 2025 Bridge task order with ISS Action which remains in effect through April 3, 2026, to provide critical armed ground transportation and guard services along the Southwest Border (SWB). These services are essential to safely and efficiently move and secure detainees, and to prevent the diversion of hundreds of U.S. Border Patrol (USBP) Agents from mission-critical law enforcement and border security duties. This Bridge task order was established to continue to provide these critical armed ground transportation and guard services when the 2019 Blanket Purchase Agreement (BPA) with ISS Action expired August 13, 2025.

The acquisition activities outlined below provide a comprehensive account of how Mission Support Directorate (MSD) initiated and continued work on the SWB ACC Recompete requirement following its transfer from Program Management Office Directorate (PMOD), and how external factors impacted the timing and necessity of bridge Task Orders. PMOD (as detailed below) initiated pre-award activities for the Recompete in FY2024-2025; however, due to significant funding reductions, and realignment activities, related to new policy directives issued by the new Administration, PMOD was unable to complete the competition prior to the expiration of the task order's August 13, 2025, expiration date. These circumstances required the issuance of a bridge Task Order to ensure uninterrupted ground transportation services.

Upon the formal transfer of the Transportation Program to MSD on August 1, 2025, MSD assumed responsibility for the expiring BPA and the Recompete requirement. MSD continued the pre-award activities initiated by PMOD, but faced the same funding and realignment challenges (experienced by PMOD), which further delayed the ability to award the Recompete prior to the expiration of the first bridge Task Order. Consequently, MSD was required to pursue a second bridge Task Order to maintain continuity of the ground transportation services and allow adequate time for completion of the competitive acquisition process.

It is critical to note that both PMOD and MSD engaged in timely and diligent planning for the Recompete requirement. It is the intent of CBP to release the re-compete solicitation May 1, 2026.

The need for bridge Task Orders and the extended acquisition timeline resulted from external policy, funding constraints relate to the new Administration and Government shutdowns, not from any deficiency in advance planning or acquisition management by either office. All actions taken were consistent with applicable procurement options and were necessary to ensure compliance and continuity of essential services.

ISS Action, Inc. is the only contractor that already meets all of these immediate operational requirements at scale, in the specific geographical locations required and within the timeframe needed.